



Bill Number: S.B. 1662

Bolick Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the specification that the conditions of probation imposed on a defendant be the fewest and least restrictive.
2. Reinserts the requirement that the conditions imposed be reasonably necessary to meet the specified purposes of probation.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1662
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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≤≤Double orange underlined carets enclosing an entire section≥≥ indicate that the amendment to an amendment is adding the section to the bill.

~~≤≤Orange strikeout with double orange underlined carets enclosing an entire section≥≥~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-901, Arizona Revised Statutes, is amended to
3 read:

4 13-901. Probation

5 A. If a person who has been convicted of an offense is eligible for
6 probation, the court may suspend the imposition or execution of sentence
7 and, if so, shall without delay place the person on intensive probation
8 supervision pursuant to section 13-913 or supervised or unsupervised
9 probation on such terms and conditions as the law requires and the court
10 deems appropriate, including participation in any programs authorized in
11 title 12, chapter 2, article 11. If a person is not eligible for
12 probation, imposition or execution of sentence shall not be suspended or
13 delayed. If the court imposes probation, it may also impose a fine as
14 authorized by chapter 8 of this title. If probation is granted the court
15 shall impose a condition that the person waive extradition for any
16 probation revocation procedures and it shall order restitution pursuant to

1 section 13-603, subsection C where there is a victim who has suffered
2 economic loss.

3 B. IF PROBATION IS GRANTED, THE FOLLOWING APPLY TO ANY CONDITIONS
4 OF PROBATION IMPOSED [UNLESS OTHERWISE REQUIRED BY LAW]:

5 1. IN DETERMINING THE DEFENDANT'S CONDITIONS OF PROBATION, THE
6 COURT OR A PROBATION OFFICER SHALL ~~{{[ONLY]}}~~ IMPOSE ~~{{THE FEWEST AND~~
7 ~~LEAST RESTRICTIVE}}~~ ~~{{[ONLY]}}~~ CONDITIONS OF PROBATION THAT ARE
8 ~~{{[REASONABLY NECESSARY]}}~~ ~~{{[.]}}~~ [INDIVIDUALLY DETERMINED AND NARROWLY
9 TAILORED] TO:

10 (a) ASSIST THE DEFENDANT IN LEADING A LAW-ABIDING LIFE.

11 (b) PROTECT PUBLIC SAFETY.

12 (c) PROMOTE THE DEFENDANT'S REHABILITATION.

13 2. THE CONDITIONS OF PROBATION THAT ARE IMPOSED SHALL BE INFORMED
14 BY THE DEFENDANT'S CRIMINOGENIC RISK AND NEEDS AS ESTABLISHED BY A
15 VALIDATED RISK ASSESSMENT TOOL.

16 3. THE COURT OR THE PROBATION OFFICER SHALL:

17 (a) BEFORE IMPOSING A STANDARD CONDITION OF PROBATION, CONSIDER
18 WAIVING ANY STANDARD CONDITION OF PROBATION THAT IS NOT REASONABLY
19 NECESSARY TO ACHIEVE THE PURPOSES PRESCRIBED IN PARAGRAPH 1 OF THIS
20 SUBSECTION.

21 (b) BEFORE IMPOSING A SPECIAL CONDITION OF PROBATION, CONSIDER ALL
22 INFORMATION THAT IS PROPERLY PRESENTED TO THE COURT BEFORE IMPOSING A
23 SPECIAL CONDITION OF PROBATION, SHALL DETERMINE IF THE CONDITION IS MORE
24 RESTRICTIVE THAN IS REASONABLY NECESSARY TO ACHIEVE THE PURPOSES
25 PRESCRIBED IN PARAGRAPH 1 OF THIS SUBSECTION AND SHALL NOT IMPOSE A
26 SPECIAL CONDITION OF PROBATION UNLESS THE SPECIAL CONDITION IS SUPPORTED
27 BY THE RECORD.

28 ~~[(c) ENSURE THAT ALL CONDITIONS OF PROBATION ARE INDIVIDUALLY~~
29 ~~DETERMINED AND NARROWLY TAILORED TO THE DEFENDANT.]~~

30 4. IF A PRESENTENCE REPORT WAS PREPARED PURSUANT TO SECTION 13-701,
31 THE CONDITIONS OF PROBATION IMPOSED SHALL BE INFORMED BY THE FINDINGS OF
32 THAT PRESENTENCE REPORT.

33 C. When granting probation to an adult the court, as a condition of
34 probation, shall assess a monthly fee of not less than \$65 unless, after
35 determining the inability of the probationer to pay the fee, the court
36 assesses a lesser fee. This fee is not subject to any surcharge. In
37 justice and municipal courts the fee shall only be assessed when the
38 person is placed on supervised probation. For persons placed on probation
39 in the superior court, the fee shall be paid to the clerk of the superior
40 court and the clerk of the court shall pay all monies collected from this
41 fee to the county treasurer for deposit in the adult probation services
42 fund established by section 12-267. For persons placed on supervised
43 probation in the justice court, the fee shall be paid to the justice court
44 and the justice court shall transmit all of the monies to the county
45 treasurer for deposit in the adult probation services fund established by
46 section 12-267. For persons placed on supervised probation in the
47 municipal court, the fee shall be paid to the municipal court. The
48 municipal court shall transmit all of the monies to the city treasurer who
49 shall transmit the monies to the county treasurer for deposit in the adult

1 probation services fund established by section 12-267. Any amount
2 assessed pursuant to this subsection shall be used to supplement monies
3 used for the salaries of adult probation and surveillance officers and for
4 support of programs and services of the superior court adult probation
5 departments.

6 ~~B.~~ D. The period of probation shall be determined according to
7 section 13-902, except that if a person is released pursuant to section
8 31-233, subsection B and community supervision is waived pursuant to
9 section 13-603, subsection K, the court shall extend the period of
10 probation by the amount of time the director of the state department of
11 corrections approves for the inmate's temporary release.

12 ~~C.~~ E. The court, in its discretion, may issue a warrant for the
13 rearrest of the defendant and may modify or add to the conditions or, if
14 the defendant commits an additional offense or violates a condition, may
15 revoke probation in accordance with the Arizona rules of criminal
16 procedure at any time before the expiration or termination of the period
17 of probation. If the court revokes the defendant's probation and the
18 defendant is serving more than one probationary term concurrently, the
19 court may sentence the person to terms of imprisonment to be served
20 consecutively.

21 ~~D.~~ F. At any time during the probationary term of the person
22 released on probation, any probation officer, without warrant or other
23 process and at any time until the final disposition of the case, may
24 rearrest any person and bring the person before the court.

25 ~~E.~~ G. The court, on its own initiative or on application of the
26 probationer, after notice and an opportunity to be heard for the
27 prosecuting attorney and, on request, the victim, may terminate the period
28 of probation or intensive probation and discharge the defendant at a time
29 earlier than that originally imposed if in the court's opinion the ends of
30 justice will be served and if the conduct of the defendant on probation
31 warrants it.

32 ~~F.~~ H. When granting probation the court may require that the
33 defendant be imprisoned in the county jail at whatever time or intervals,
34 consecutive or nonconsecutive, the court shall determine, within the
35 period of probation, as long as the period actually spent in confinement
36 does not exceed one year or the maximum period of imprisonment allowed
37 under chapter 7 of this title, whichever is the shorter.

38 ~~G.~~ I. If the defendant is placed on lifetime probation and has
39 served one year in the county jail as a term of probation, the court may
40 require that the defendant be additionally imprisoned in the county jail
41 at whatever time or intervals, consecutive or nonconsecutive, the court
42 shall determine, within the period of probation if the defendant's
43 probation is revoked by the court and the defendant is subsequently
44 reinstated on probation. The period actually spent in confinement as a
45 term of being reinstated on probation shall not exceed one year or, when
46 including the initial one-year period of incarceration imposed as a term
47 of probation, the maximum period of imprisonment allowed under chapter 7
48 of this title, whichever is shorter.

1 ~~H.~~ J. If restitution is made a condition of probation, the court
2 shall fix the amount of restitution and the manner of performance pursuant
3 to chapter 8 of this title.

4 ~~I.~~ K. When granting probation, the court shall set forth at the
5 time of sentencing and on the record the factual and legal reasons in
6 support of each sentence.

7 ~~J.~~ L. If the defendant meets the criteria set forth in section
8 13-901.01 or 13-3422, the court may place the defendant on probation
9 pursuant to either section. If a defendant is placed on probation
10 pursuant to section 13-901.01 or 13-3422, the court may impose any term of
11 probation that is authorized pursuant to this section and that is not in
12 violation of section 13-901.01.

13 ~~K.~~ M. If the court imposes a term of probation, the court may
14 require the defendant to report to a probation officer. The court or the
15 defendant's probation officer may allow the defendant to fulfill a
16 reporting requirement through remote reporting. The probation officer
17 shall take into consideration and make accommodations for the
18 probationer's work schedule, family caregiver obligations, substance abuse
19 treatment or recovery program, mental health treatment, transportation
20 availability and medical care requirements before setting the reporting
21 time and location requirements for the probationer.

22 ~~L.~~ N. If a probationer makes a written request to the supervising
23 probation department to courtesy transfer the probationer's intensive
24 probation supervision or supervised probation to another county in this
25 state with the intent to reside in that county and provides proof of
26 family caregiver obligations, employment or housing, or an offer of
27 employment or housing that will assist in the probationer's positive
28 behavioral change, the supervising probation department shall do all of
29 the following:

30 1. Confirm the details of the probationer's employment, housing or
31 family caregiving plans.

32 2. Review any victim safety concerns and ensure compliance with the
33 victims' bill of rights.

34 3. Submit the request for permission to proceed to the receiving
35 county within seven business days after receipt.

36 ~~M.~~ O. After verifying the information submitted by the sending
37 probation department pursuant to subsection ~~L~~ N of this section, the
38 receiving probation department shall provide the sending probation
39 department with permission for the probationer to proceed to the receiving
40 county within seven business days after receipt unless the receiving
41 probation department finds the basis for the plan is not factual or the
42 transfer will endanger the victim.

43 ~~N.~~ P. If a probationer's intensive probation supervision or
44 supervised probation is courtesy transferred to another county pursuant to
45 subsection ~~L~~ N of this section and the probationer subsequently violates
46 the terms of the probationer's probation or commits an additional offense
47 while on probation, the probation department in the county in which the
48 probation violation or additional offense occurred may not return the
49 probationer's intensive probation supervision or supervised probation back

1 to the county in which the probationer's probation was originally imposed
2 except for revocation hearings or an order of the court.

3 Sec. 2. Section 13-903, Arizona Revised Statutes, is amended to
4 read:

5 13-903. Calculation of periods of probation

6 A. A period of probation commences on the day it is imposed or as
7 designated by the court, and an extended period of probation commences on
8 the day the original period lapses.

9 B. If a court determines that the defendant violated a condition of
10 the defendant's probation but reinstates probation, the period between the
11 date of the violation and the date of restoration of probation is not
12 computed as part of the period of probation. If it is determined that the
13 defendant is not a violator, there is no interruption of the period ~~OF~~
14 ~~PROBATION~~.

15 C. The running of the period of probation shall cease during the
16 unauthorized absence of the defendant from the jurisdiction or from any
17 required supervision and shall resume only ~~upon~~ ~~ON~~ the defendant's
18 voluntary or involuntary return to the probation service.

19 D. The running of the period of probation shall cease during the
20 period from the filing of the petition to revoke probation to the
21 termination of revocation of probation proceedings, except that if a court
22 determines that the defendant is not a violator, there is no interruption
23 of the period of probation.

24 E. If probation is imposed on one who at the time is serving a
25 sentence of imprisonment imposed on a different conviction, service of the
26 sentence of imprisonment shall not satisfy the probation.

27 F. Time spent in custody under section 13-901, subsection ~~F~~ ~~H~~
28 shall be credited to any sentence of imprisonment imposed ~~upon~~ ~~ON~~
29 revocation of probation.

30 Sec. 3. Section 13-917, Arizona Revised Statutes, is amended to
31 read:

32 13-917. Modification of supervision

33 A. The adult probation officer shall periodically examine the risk
34 and needs of each person granted intensive probation and the risks of
35 modifying the level of supervision of the person. The court or the adult
36 probation officer may at any time modify the level of intensive probation
37 supervision of a person granted intensive probation. The court may
38 transfer the person to standard probation or terminate the period of
39 intensive probation pursuant to section 13-901, subsection ~~F~~ ~~G~~.

40 B. If a petition to revoke the grant of intensive probation is
41 filed and the court finds that the person has committed an additional
42 felony offense that posed a serious threat or danger to the community, the
43 court shall revoke the grant of intensive probation and impose a term of
44 imprisonment as authorized by law. If the court finds that the person has
45 committed a violation of a condition of intensive probation that posed a
46 serious threat or danger to the community, the court shall revoke the
47 grant of intensive probation and impose a term of imprisonment as
48 authorized by law. If the court finds that the person has violated any
49 other condition of intensive probation, the court may modify the

1 conditions of intensive probation or may revoke the grant of intensive
2 probation and impose a term of imprisonment as authorized by law.

3 C. The court shall notify the parties, and the victim on request,
4 of any proposed modification of the terms of a person's intensive
5 probation if that modification will substantially affect the person's
6 contact with or safety of the victim or if the modification involves
7 restitution or incarceration status.

8 Sec. 4. Section 13-924, Arizona Revised Statutes, is amended to
9 read:

10 13-924. Probation; earned time credit; work time credit;
11 applicability; definitions

12 A. The court may adjust the period of a probationer's supervised
13 probation on the recommendation of an adult probation officer for earned
14 time credit or work time credit.

15 B. Earned time credit equals twenty days for every thirty days that
16 a probationer does all of the following:

17 1. Exhibits positive progression toward the goals and treatment of
18 the probationer's case plan.

19 2. Is current on payments for ~~court-ordered~~ COURT-ORDERED
20 restitution and is in compliance with all other nonmonetary obligations.

21 3. Is current in completing community restitution.

22 C. Work time credit equals thirty days for every thirty days that a
23 probationer does all of the following:

24 1. Is engaged in eligible employment. A probationer must provide
25 supporting documentation to the supervising probation officer within five
26 business days after completing thirty days of eligible employment. The
27 supervising probation officer must verify the probationer's employment
28 through the supporting documentation that is provided by the probationer
29 and by any other means that the court determines is necessary to verify
30 the work, including site visits and telephonic verification. The
31 probation officer must document any request for work time credit that is
32 denied.

33 2. Exhibits positive progression toward the goals and treatment of
34 the probationer's case plan.

35 3. Is current on payments for court-ordered restitution and is in
36 compliance with all other nonmonetary obligations.

37 4. Is current in completing community restitution.

38 D. Any earned time credit and work time credit awarded pursuant to
39 this section shall be revoked if a probationer is found in violation of a
40 condition of probation.

41 E. This section does not apply to a probationer who is currently:

42 1. On lifetime probation.

43 2. On probation for any class 2 or 3 felony.

44 3. On probation exclusively for a misdemeanor offense.

45 4. Required to register pursuant to section 13-3821.

46 F. This section has no effect on the ability of the court to
47 terminate the period of probation or intensive probation pursuant to
48 section 13-901, subsection ~~F~~ G at a time earlier than originally imposed.

1 G. For the purposes of this section:

2 1. "Eligible employment" means any occupation or combination of
3 occupations for which a person can provide supporting documentation
4 verifying at least one hundred thirty wage-earning hours in any thirty-day
5 period.

6 2. "Supporting documentation" means an employment record, pay stub,
7 employment letter, contract or other reliable means of verifying
8 employment.

9 Enroll and engross to conform

10 Amend title to conform

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